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JUNQIAO XIAO, State Bar No.: 341670
HYO JIN JULIA JUNG, State Bar No.: 316090
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Midland Credit Management, Inc.
350 CAMINO DE LA REINA, SUITE 100
SAN DIEGO, CA 92108
Telephone: (866) 300-8750
Facsimile: (858) 309-1588
CaliforniaLegal@mcmcg.com
CA Debt Collector License Number Pending
Attorneys for Plaintiff

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Superior Court of California,
County of Los Angeles
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David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES**

CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Case No. **24CHLC00819**

Plaintiff,

COMPLAINT FOR:

vs.

(1) Account Stated

THOMAS TERNUS;
and DOES 1 through 10, inclusive
Defendant.

PRAYER AMT: \$3,114.64
LIMITED

MIDLAND CREDIT MANAGEMENT, INC., ("Plaintiff"), by counsel, sues THOMAS TERNUS, ("Defendant")
under Account Stated and in support thereof states:

1. Plaintiff is authorized to do business in CALIFORNIA, with its principal place of business at 350 CAMINO DE LA REINA SUITE 100 SAN DIEGO CA 92108. Plaintiff owns portfolios of consumer receivables, which it attempts to collect. Plaintiff strives to treat its consumers, such as Defendant, with respect, compassion and integrity, hoping to provide mutually-beneficial opportunities for consumers to repay their debts and attain financial recovery.
2. Defendant is a resident of LOS ANGELES County, State of California and is subject to this Court's jurisdiction.
3. Plaintiff is unaware of the true names and capacities of Defendants sued by the fictitious names DOES 1 through 10. Plaintiff will ask leave of court to amend this complaint as and when the true names and capacities of Defendants named herein as DOES 1 through 10 have been ascertained.
Pursuant to California Civil Code ("CA CIVIL") §1788.58(a)(1)-(9), Plaintiff alleges:
4. Plaintiff is a debt buyer as defined by CA CIVIL §1788.50(a).

- 1 5. Defendant established a credit account (the “Account”) with SYNCHRONY BANK. The
2 amount due is the result of transactions that occurred on the Account. Defendant was
3 provided statements evidencing Defendant’s use of the Account and the balance due.
4 Defendant failed to make the required payments and subsequently defaulted on the
5 Account on July 13, 2022. Thereafter, Plaintiff was assigned all rights, title, and interest
6 in the Account.
- 7 6. Plaintiff is the sole owner of the debt. Attached as Exhibit A is a true and correct copy of
8 the Bill of Sale from SYNCHRONY BANK, to Plaintiff. The Account was purchased by
9 Plaintiff on March 28, 2023.
- 10 7. The Account balance at the time of charge-off was \$3,155.64. Plaintiff alleges that the
11 date of default is July 13, 2022 and the date of the last payment was June 09, 2022.
- 12 8. The name of the charge-off creditor at the time of charge-off is SYNCHRONY BANK.
13 The address utilized by SYNCHRONY BANK at the time of charge-off was 170
14 ELECTION RD SUITE 125 DRAPER, UT 84020. At the time of charge off, the account
15 number associated with the debt was XXXXXXXX-XX-4999.
- 16 9. The name of the debtor as it appeared in the records of SYNCHRONY BANK is
17 THOMAS TERNUS and the last known address as it appeared in the records of
18 SYNCHRONY BANK is 2811 CHANTEL LN PALMDALE CA 93551.
- 19 10. The name and address of all post charge-off purchasers of the debt are as follows:
- | Name | Address |
|------------------------------------|--|
| MIDLAND CREDIT MANAGEMENT,
INC. | 350 CAMINO DE LA REINA SUITE 100 SAN
DIEGO CA 92108 |
- 20 11. Plaintiff has complied with the provisions of CA CIVIL §1788.52. Plaintiff informed
21 Defendant of the assignment of the Account.
- 22 12. Pursuant to CA CIVIL §1788.58(b), attached as Exhibit B is a true and correct copy of a
23 monthly statement recording a purchase transaction, payment, or balance transfer while
24 the Account was active as required by CA CIVIL §1788.52(b).
- 25 13. Attached as Exhibit C is a true and correct copy of a billing statement that was mailed to
26 Defendant stating the balance due on the Account at or around the time of charge-off.
27
28

- 1 14. Plaintiff acquired all right, title, and interest to the Account. To the extent that Plaintiff
2 acts in its capacity as successor-in-interest to the original creditor or its assigns,
3 references herein to Plaintiff may include Plaintiff's predecessor-in-interest.
- 4 15. Plaintiff has attempted to contact Defendant through several means in an effort to resolve
5 the Account, but has been unsuccessful. Defendant has not repaid this debt. Plaintiff
6 works with consumers like Defendant to find mutually acceptable solutions, often
7 offering discounts, hardship plans, and a variety of payment options. The majority of
8 Plaintiff's consumers ignore calls or letters, and some simply refuse to repay their
9 obligations. When this happens, Plaintiff must decide whether to pursue collection
10 through legal channels, including litigation such as the present action against Defendant.
11 Nonetheless, Plaintiff remains interested in discovering a mutually beneficial solution
12 through voluntary payments, if possible, in this case.
- 13 16. Before commencement of this action, Plaintiff informed Defendant in writing, that it
14 intended to file this action and that this action could result in a judgment against
15 Defendant that would include court costs allowed by California Code of Civil Procedure
16 § 1033(b)(2).

17 **FIRST CAUSE OF ACTION**

18 **ACCOUNT STATED**

- 19 17. Plaintiff realleges and incorporates by reference the foregoing paragraphs.
- 20 18. An account was stated in writing between Defendant and SYNCHRONY BANK.
21 Defendant opened and derived benefit from the Account. By using the Account,
22 Defendant expressly or impliedly promised to repay SYNCHRONY BANK. Within the
23 last four years, Defendant became indebted on the Account.
- 24 19. On the Account, a balance of \$3,155.64 was stated to be due to SYNCHRONY BANK
25 from Defendant. Plaintiff has no record of Defendant objecting to the balance due.
- 26 20. Before the commencement of this action, Plaintiff was assigned the Account and
27 indebtedness. Plaintiff is now the sole owner of the Account.
- 28 21. Plaintiff has made a demand on Defendant for repayment of the Account, but Defendant
has failed to pay the balance due.
22. The current balance presently due and owing is \$3,114.64 which includes payments, set-
offs, credits or allowances, if any, at or after charge-off.

1
2 **WHEREFORE**, Plaintiff requests judgment against Defendant for \$3,114.64, costs of this action
3 and post judgment interest at the statutory rate. Plaintiff waives any claim for pre- judgment interest and
4 attorney's fees.
5

6
7 Dated: December 27, 2023

MIDLAND CREDIT MANAGEMENT, INC.

8
9
10 

11 By: Junqiao Xiao, Esq.

12 ☐ ROBERT K. HANNA / ☐ JUNQIAO XIAO
13 ☐ MICHAEL D. KAHN / ☐ HYU JIN JULIA JUNG
14 ☐ LAMONT FREEMAN
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EXHIBIT A



4500 Munson St NW
Canton OH 44718, U.S.

BILL of SALE

Midland (SFFSMN1S) – PSCC Fresh – March 2023

For value received and in further consideration of the mutual covenants and conditions set forth in the Forward Flow Accounts Purchase Agreement (the “Agreement”), dated as of 23rd day of August, 2022 by and between Synchrony Bank formerly known as GE Capital Retail Bank; RFS Holding, L.L.C., Synchrony Card Funding, LLC, and Retail Finance Credit Services, LLC (collectively “Seller”) and Midland Credit Management, Inc. (“Buyer”), Seller hereby transfers, sells, conveys, grants, and delivers to Buyer, its successors and assigns, without recourse except as set forth in the Agreement, the Accounts as set forth in the Notification Files, delivered by Seller to Buyer on or about 18th day of March 2023, and as further described in the Agreement. Capitalized terms not defined herein shall have the definition ascribed in the Agreement.

With respect to information for the Accounts summarized in the Notification Files, the Seller represents and warrants to Buyer that (i) the Account information constitutes the Seller’s own business records and accurately reflects in all material respects the information in the Seller’s database; (ii) the Account information was kept in the regular course of business; (iii) the Account information was made at or near the time by, or from information transmitted by, a person with knowledge of the data entered into and maintained in the Account’s database; and (iv) it is the regular practice of the Seller’s business to maintain and compile such data.

Synchrony Bank

DocuSigned by:
By: Lynne Fisher 4/3/2023
Lynne Fisher
SVP Recovery Operations

Synchrony Card Funding, LLC

DocuSigned by:
By: Lynne Fisher 4/3/2023
Lynne Fisher
Duly Authorized Signatory

RFS Holding, LLC

DocuSigned by:
By: Lynne Fisher 4/3/2023
Lynne Fisher
Duly Authorized Signatory

Retail Finance Credit Services, LLC

DocuSigned by:
By: Lynne Fisher 4/3/2023
Lynne Fisher
Vice President

Midland Credit Management, Inc.

DocuSigned by:
By: Danielle Wohlfahrt 4/3/2023
Danielle Wohlfahrt
VP, Business Development

QC APPROVED

By: Nicholas Matovsky
Date: 3/30/2023

Purchase Price Reconciliation/Funding Instructions

March 20, 2023

To: **Midland**

This FORWARD FLOW ACCOUNTS PURCHASE AGREEMENT, is made this 23rd day of August 2022, (the "Effective Date"), by and between Synchrony Bank formerly known as GE Capita I Retail Bank; RFS Holding, L.L.C., Synchrony Card Funding, LLC and Retail Finance Credit Services, LLC (collectively, "Seller") and Midland Credit Management, Inc. ("Buyer") with reference to the following facts and circumstances:

Portfolio	Debt Manager
Agcy_Atty Code	SFFSMN1S
Total Number of Accounts	
Outstanding Balances on Transfer Date:	
Cut-Off Date	March 18, 2023
Transfer Date	March 18, 2023
Purchase Price Factor	
Purchase Price	
0% Holdout	
Amount of Wire transfer	
Date of Funding (no later than):	March 29, 2023
Wire Date:	March 28, 2023
Bank:	
ABA No.	
Account No:	
Account Holder:	
Location:	

AFFIDAVIT OF SALE
OF ACCOUNT
BY ORIGINAL CREDITOR

State of Florida County of Seminole

Alexa Stubbs being duly sworn, deposes and says:

I am over 18 and not a party of this action. I am a Media Representative of Synchrony Bank formerly known as GE Capital Retail Bank. In that position I have access to creditor's books and records, and am aware of the process of the sale and assignment of electronically stored business records.

On or about **3/18/2023** Synchrony Bank formerly known as GE Capital Retail Bank sold a pool of charge-off accounts (the Accounts) by a Purchase and Sale Agreement and a Bill of Sale to **Midland Credit Management, Inc.** As part of the sale of the Accounts, electronic records and other records were transferred on individual Accounts to the debt buyer. These records were kept in the ordinary course of business of Synchrony Bank formerly known as GE Capital Retail Bank.

The Creditor has a process to detect and correct errors on these accounts. The above statements are true to the best of my knowledge.

Signed this 20th day of April, 2023

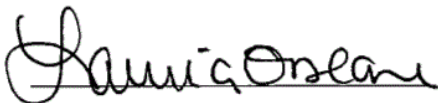


Alexa Stubbs

Signed and sworn to before me this 20th day of April, 2023

(Notary Stamp)





**NY CoC CERTIFICATE OF CONFORMITY UNDER
NYS CLS CPLR § 2309(c) AND NYS CLS RPL § 299-a**

The undersigned does hereby certify that he/she is an attorney-at-law duly admitted to practice in the State of Florida and residing in the State of Florida; that he/she is a person duly qualified to make this certificate of conformity pursuant to Section 299-a of the Real Property Law of the State of New York; that he/she is fully acquainted with the laws of the State of Florida pertaining to the acknowledgment or proof of affidavits; that the acknowledgement or proof upon the foregoing Affidavit of **Alexa Stubbs** was taken by **Larissa Osborne**, a notary public in the State of Florida, in the manner prescribed by the laws of the State of Florida, being the state in which the Affidavit was taken; and, based on his/her review thereof, that the notarized Affidavit conforms to the laws of the State of Florida in all respects.

Witness my signature this 20th day of April, 2023



Tyler Burich

Attorney-at-law, State of Florida.

Field	Field Data
Account Number	██████████4999
First Name	THOMAS
Last Name	TERNUS
SSN	XXX-XX-6160
Date of Birth	██████████
Address 1	2811 CHANTEL LN
City	PALMDALE
State	CA
Zip	93551
Open Date	09/08/2021
Last Purchase Date	09/14/2021
Last Purchase Amount	\$370.51
Last Payment Date	06/09/2022
Last Payment Amount	\$68.00
Sale Amount	\$3,155.64
Charge Off Date	01/11/2023
Charge off Balance	\$3,155.64
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	NETWORKS
Alternate Account #1	██████████1536

Account information provided by Synchrony Bank formerly known as GE Capital Retail Bank pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 03/28/2023 in connection with the sale of accounts from Synchrony Bank formerly known as GE Capital Retail Bank to Midland Credit Management, Inc.

EXHIBIT B

Transaction Summary				
Tran Date	Post Date	Reference Number	Description	Amount
06/09/2022	06/09/2022	8534831DML1RSSAMG	PAYMENT - THANK YOU	(\$68.00)
			FEES	
06/05/2022	06/05/2022		LATE FEE	\$39.00
			TOTAL FEES FOR THIS PERIOD	\$39.00

Continued on next page

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

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Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Payment Due Date	New Balance	Account Number
\$67.00	07/05/2022	\$1,910.04	4999

Payment Enclosed : \$

☐ **New address or e-mail?** If you only pay the Total Minimum Due it may not pay off the Promotional Purchase by the Expiration Date.
Check the box at left and
print changes on back

THOMAS TERNUS
2811 CHANTEL LN
PALMDALE CA 93551-1597

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061

Transaction Summary (Continued)

Tran Date	Post Date	Reference Number	Description	Amount
06/12/2022	06/12/2022		INTEREST CHARGED	
			INTEREST CHARGE ON PURCHASES	\$4.32
			TOTAL INTEREST FOR THIS PERIOD	\$4.32
2022 Totals Year-to-Date				
Total Fees Charged in 2022				\$158.00
Total Interest Charged in 2022				\$18.04
Total Interest Paid in 2022				\$9.00

Interest Charge Calculation

Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$175.09	\$4.32
Deferred Interest/No Interest If Paid In Full	09/12/2022	29.99%	\$1,816.86	\$0.00
Deferred Interest/No Interest If Paid In Full	10/13/2022	29.99%	\$457.75	\$0.00

New Promotional Financing Plans

This notice is to let you know about some promotional financing plans that may be available for you when you use your card for **future** purchases. This is only a summary of key terms. At times, we may offer you other promotional financing plans for certain purchases. Details of available promotions will be provided to you at the time of your transactions. Not all plans or all plan periods will be available at every retailer. For purposes of this notification, your **Purchase Annual Percentage Rate ("APR")s 29.99%** See the Interest Charge Calculation section of this billing statement to determine if this APR is variable. If a (v) is shown next to your APR, this APR will vary with the market based on the prime rate. Subject to credit approval. Regular account terms apply to non-promotional purchases and, after promotion ends, to promotional purchase.

No Interest if Paid Within Promotional Period

(These can be advertised as Deferred Interest promotions)

Under this promotion, no Interest Charges will be assessed if the promotional purchase balance (including any promotional fee) is paid in full within the promotional period. If the promotional purchase balance is not paid in full by the end of the promotional period, interest will be imposed from the date of purchase at the **Purchase APR** stated above. Minimum monthly payments are required. This promotion may be offered for periods of **6, 9, 12, 15, 18 or 24 months**.

In addition to participating Synchrony HOME retail locations, your card is now accepted at thousands of other retailers nationwide from furniture and décor to appliances and more. Visit mysynchrony.com/home to find locations near you. Purchases of \$299 or more made at these additional retailers are eligible for the 6 Month promotion described above.

Please keep this for your records. If you have any questions, please call us at the Customer Service number shown on your statement.

Cardholder News & Information

If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syf.com under the 'Contact Us' page.

Synchrony Bank may continue to obtain information, including employment and income information from others about you (including requesting reports from consumer reporting agencies and other sources) to review, maintain or collect your account.

EXHIBIT C

Summary of Account Activity		Payment Information							
Previous Balance	\$2,993.61	New Balance	\$3,114.64						
+ New Purchases	\$0.00	Minimum Payment This Period	\$153.00						
- Payments	\$0.00	Amount Past Due	\$614.00						
+/- Credits, Fees & Adjustments (net)	\$41.00	Total Minimum Payment Due	\$767.00						
+/- Interest Charge (net)	\$80.03	Payment Due Date	01/05/2023						
New Balance	\$3,114.64	PAYMENT DUE BY 5 P.M. EASTERN ON THE DUE DATE.							
Credit Limit	\$2,080.00	We may convert your payment into an electronic debit. See reverse side.							
Available Credit	\$0.00	Late Payment Warning: If we do not receive your Total Minimum Payment Due by the Payment Due Date listed above, you may have to pay a late fee up to \$41.00.							
Overlimit Amount	\$1,034.64	Minimum Payment Warning: Making only the Total Minimum Payment Due will increase the amount of interest you pay and the time it takes to repay your balance. For example:							
Days in Billing Period	32	<table><tr><th>If you make no additional charges using this card and each month you pay ...</th><th>You will pay off the balance shown on this statement in about ...</th><th>And you will end up paying an estimated total of ...</th></tr><tr><td>Only the minimum payment</td><td>12 years</td><td>\$7,514.00</td></tr></table>		If you make no additional charges using this card and each month you pay ...	You will pay off the balance shown on this statement in about ...	And you will end up paying an estimated total of ...	Only the minimum payment	12 years	\$7,514.00
If you make no additional charges using this card and each month you pay ...	You will pay off the balance shown on this statement in about ...	And you will end up paying an estimated total of ...							
Only the minimum payment	12 years	\$7,514.00							
Pay online for free at: mysynchrony.com/home For Synchrony Bank customer service or to report your card lost or stolen, call 1-844-335-5909.		If you would like information about credit counseling services, call 1-877-302-8797.							
Best times to call are Wednesday - Friday.									

Transaction Summary				
Tran Date	Post Date	Reference Number	Description	Amount
FEES				
12/05/2022	12/05/2022		LATE FEE	\$41.00
TOTAL FEES FOR THIS PERIOD				\$41.00
INTEREST CHARGED				
12/13/2022	12/13/2022		INTEREST CHARGE ON PURCHASES	\$80.03
TOTAL INTEREST FOR THIS PERIOD				\$80.03
2022 Totals Year-to-Date				
Total Fees Charged in 2022		\$404.00		
Total Interest Charged in 2022		\$976.64		
Total Interest Paid in 2022		\$9.00		

Interest Charge Calculation				
Type of Balance	Expiration Date	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	NA	29.99%	\$3,043.58	\$80.03

Cardholder News & Information	
If your account has a Deferred Interest promotional balance and you would like a payment to be applied to a specific promotional or non-promotional balance, call Customer Service, no later than 60 days after the transaction date of your payment as shown on your statement, to learn what options may be available. If you need to contact Synchrony about the loss of a Synchrony cardholder, you can submit a deceased notification form located at www.syf.com under the 'Contact Us' page.	

* NOTICE: See reverse side and additional pages (if any) for important information concerning your account.

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Pay online at mysynchrony.com or enclose this coupon with your check. Please use blue or black ink.

Total Minimum Payment Due	Past Due Amount	Payment Due Date	New Balance	Account Number
\$767.00	\$614.00	01/05/2023	\$3,114.64	XXXXXXXXXX 4999

Payment Enclosed : \$

☐ **New address or e-mail?** Payment due includes \$ 614.00 past due. Please pay the past due amount PROMPTLY.
Check the box at left and print changes on back

THOMAS TERNUS
2811 CHANTEL LN
PALMDALE CA 93551-1597

Make Payment to: SYNCHRONY BANK
PO BOX 960061
ORLANDO, FL 32896-0061